

HSU v DEL MUNDO

24CV47462

DEFENDANT'S DEMURRER TO FAC

Plaintiff Mike Sheng Con Hsu. ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer to the First Amended Complaint ("FAC.")

The parties have sufficiently attempted to meet and confer.

I. FACTS

Allen Weeks and Barbara Weeks (hereinafter "Weeks") were the homeowners of the property at 11058 Slate Drive, San Andreas, California (hereinafter "Subject Property"). In May 1993, John W. Matthews and Diane Matthews (hereinafter "Matthews") were the homeowners of the property at 11034 Slate Drive, San Andreas, California (hereinafter "Neighboring Property")(FAC ¶ 8.) The Subject Property and the Neighboring Property are adjacent to one another and located at the end of Slate Drive. (Id. ¶ 9.)

On or about May 28, 1993, the Weeks obtained an easement for non-exclusive use for a 20 feet wide roadway on the Neighboring Property to be used by the Weeks ("Easement") (Id. ¶ 10.) The Easement is located on the eastern border of the Neighboring Property's land, closest to the Subject Property. (*Ibid.*) Plaintiff alleges that the Easement has been used as a driveway for access from Slate Drive to the Subject Property from 1993 to present day. (Id. ¶¶ 10,11.)

On or about August 10, 2017, Plaintiff purchased the Subject Property from the Weeks and continued to use the recorded Easement. (Id. ¶ 12.) In 2021, the Defendants purchased the Neighboring Property. (Id. ¶ 13.) In December 2022, Defendants built a wired fence on the recorded easement covering about 80% of the driveway reducing Plaintiff's ability to use the recorded easement. (Id. ¶ 14.) The wired fence is allegedly located directly on Plaintiff's driveway, leaving no space between the driveway and the fence. (*Ibid.*) Plaintiff has repeatedly requested that Defendants remove the fence, but Defendants have refused to do so. (Id. ¶ 15.)

On or about January 24, 2023, Plaintiff had the Subject Property surveyed by a licensed Land Surveyor. The survey confirmed that there is a valid easement on the Neighboring Property, allowing Plaintiffs to use the easement as a driveway into the Subject Property. (*Id.* ¶ 16.)

In March 2024, Plaintiff asked Defendants to move the fence, to which Defendant Leonardo stated “Nothing is going to change.” (FAC ¶ 17.) Plaintiff alleges that to date, the fence remains blocking the Easement.

Plaintiff brings causes of action for: 1) injunctive relief, 2) nuisance, 3) easement by prior use, and 4) declaratory relief; 5) breach of contract; and 6) interference with recorded easement.

II. Legal Standard

“A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded.” (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of “contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that “reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

The Court must overrule the demurrer if it states a cause of action under any legal theory. (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 452.)

III. Discussion

A. Injunctive Relief and Viable Causes of Action

When considering a claim for injunctive relief the Court balances the: (1) likelihood of success on the merits, (2) irreparable harm if the injunction is not granted, (3) whether a balancing of the relevant equities favors the injunction; and (4) whether the issuance of the injunction is in the public interest. (Cal. Civ. Proc. §527.) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction]

will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’”(Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183 [citing King v. Meeks (1987) 43 Cal.3d 1217, 1227.]

Defendants claim that Plaintiff fails to establish a viable cause of action to support injunctive relief.

Here Plaintiff alleges three causes of action underlying their request for injunctive relief: 1) nuisance and 2) easement based on prior use (implied easement), 3) interference with recorded easement and 4) breach of contract.

1. Nuisance

In order to state a claim for nuisance, Plaintiff must allege facts showing: “[a]nything which is injurious to health . . . or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.” (Civ. Code, § 3479.)” “A nuisance may be both public and private, but to proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land.” (*Koll-Irvine Center Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041.)

To establish an action for private nuisance, the plaintiff must prove an interference with his use and enjoyment of his property; (2) the invasion must be substantial and cause substantial actual damage; and 3) the interference with the protected interest must not only be substantial, but it must also be unreasonable. (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-263.)

Here, Plaintiff alleges that he has a valid and recorded Easement which has been consistently used as a driveway to access his property. Plaintiff alleges that Defendants built a wired fence on the Easement covering 80% of the driveway. (Complaint ¶14.) As a result of the fence covering 80% of their driveway, Plaintiff has had their use and enjoyment of their property substantially limited. While Plaintiff has sufficiently alleged that their use of the driveway has been restricted, they do not allege that they have suffered any “substantial actual damage.” (*Mendez, supra* 3 Cal.App.5th 248, 262-263.) That is, there is no factual allegation of substantial economic or non-economic damage caused by the Defendants’ conduct.

Because Plaintiffs do not allege substantial actual harm caused by the fence, they do not state a cause of action for nuisance. As such, their claim for nuisance cannot form the basis for the request for injunctive relief. Additionally, as the Plaintiff does not state

a cause of action for nuisance, the demurrer as to that cause of action is sustained, with leave to amend.

2. Easement from Prior Use /Interference with Easement

California Civil Code section 1104 provides:

A transfer of real property passes all easements attached thereto, and creates in favor thereof an easement to use other real property of the person whose estate is transferred in the same manner and to the same extent as such property was obviously and permanently used by the person whose estate is transferred, for the benefit thereof, at the time when the transfer was agreed upon or completed.

An implied easement may be inferred “where there is an obvious ongoing use that is reasonably necessary to the enjoyment of the land granted.” (*Thorstrom v. Thorstrom* (2011). 196 Cal.App.4th 1406, 1419.)

Plaintiffs has alleged that the Weeks, from whom Plaintiff purchased the Subject Property, had an Easement to use the 20-foot strip of road as a driveway. They allege that the use of the Easement had occurred continuously since 1993 and that when Plaintiffs purchased the Subject Property, they took the Easement and continued using the driveway to access their home. Plaintiff has alleged that the Easement is necessary for the use and enjoyment of the Subject Property because it provides the means of access to their home.

Plaintiff adequately sets forth a cause of action based on implied easement, and accordingly can rely on this cause of action in seeking injunctive relief. However, in order to state a claim for injunctive relief, Plaintiff must also sufficiently demonstrate that there will be irreparable harm or that the balance of the relevant equities favors the injunction. Where, as here, the Plaintiff has (for purposes of demurrer) demonstrated a likelihood of success on the merits, the Plaintiff need not produce as much evidence of harm or equities. (*Integrated Dynamic Solutions, Inc.*, supra at 1183.)

Plaintiff has alleged that he has a valid Easement and that Defendants have erected a fence covering 80% of the Easement. While Defendants assert that any such fence has now been removed, the allegation remains that Defendants did erect a fence across a legal Easement which interfered with Plaintiff’s lawful rights. Plaintiff has been forced to

seek legal recourse to have the fence removed. The balance of equities weighs in favor of an injunction prohibiting obstruction of the Easement.

Likewise, Plaintiff can also seek injunctive relief based on his claim for interference with easement.

The owner of the dominant tenement must use their easement in such a way as to “impose as slight a burden as possible on the servient tenement.” (*Scruby v. Vintage Grapevine, Inc.* (1995) 37 Cal.App.4th 697, 702.) “[T]he owner of the servient tenement may make any use of the land that does not interfere unreasonably with the easement.” (*Camp Meeker Water System, Inc. v. Public Utilities Com.* (1990) 51 Cal.3d 845, 867.) Accordingly, the Defendants, as the owners of the servient tenement, may not use their property in a “way that obstructs the normal use of the easement.” (*Blackmore v. Powell* (2007) 150 Cal.App.4th 1593, 1599.)

Plaintiffs allege that Defendants have, at least at times, erected a fence which blocks 80% of the Easement which inhibits access to Plaintiff’s property. Whether or not the fence currently exists is irrelevant at this stage because at a demurrer, the allegations in the Complaint must be believed as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) Accordingly, Plaintiff has sufficiently alleged a cause of action for interference with easement.

3. Breach of Contract

A breach of contract’s essential elements are: (1) parties entered into an agreement, (2) plaintiff did all or substantially the things the contract required them to do, (3) defendant failed to do something the contract required him to do, (4) plaintiff was harmed, and (5) defendant’s breach was a substantial factor in causing plaintiff’s harm. (CACI 303).

Defendants argue that there is no breach of contract because the fence has been removed and Plaintiff has not alleged that he suffered any harm. Again, on demurrer, the Court is required to assume the allegations in the complaint are true and therefore that there is a fence covering 80% of the Easement. Plaintiff has alleged the existence of a contract (Easement), that Plaintiff has used the Easement, and that Plaintiff has been harmed by the Defendants’ placement of a fence covering 80% of the Easement. For purposes of demurrer, the FAC adequately sets forth a cause of action for breach of contract.

Accordingly, Defendants demurrer as to the cause of action for injunctive relief, for easement from prior use, for interference with easement, and for breach of contract are overruled.

B. Declaratory Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. “ ‘One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff’s future conduct in order to preserve his legal rights.’ ” (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

Defendants argue that there is no active controversy because the wired fence has been removed. This fact is contested by Plaintiffs. Regardless, at the demurrer stage, the Court looks only to the facts as alleged in the pleadings. The Complaint clearly alleges that there is an ongoing controversy surrounding the existence of fence on the Plaintiff’s driveway.

The demurrer to the cause of action for declaratory relief is overruled.

IV. Conclusion.

Plaintiff has not stated a cause of action for nuisance and the demurrer is **sustained, with 20 (twenty) days’ leave to amend.**

Plaintiff has stated a cause of action for injunctive relief, implied easement, interference with easement, declaratory relief, and breach of contract and the demurrer is **overruled** as to those causes of action.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

RENFROE v FCA US, LLC

24CV47466

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, and EXPENSES

This case involves a dispute over a vehicle warranty dispute. Now before the Court is Plaintiff Joshua Renfroe's motion for attorney's fees.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]